



February 13, 2026

ENGROSSED HOUSE BILL No. 1251

DIGEST OF HB 1251 (Updated February 12, 2026 10:46 am - DI 116)

Citations Affected: IC 16-18; IC 16-31; IC 34-30.

Synopsis: Emergency ambulance services. Specifies that emergency medical services, including emergency ambulance services, are essential services in Indiana. Specifies that the provision of emergency medical services is an essential purpose of political subdivisions. Requires the county commissioners of each county to: (1) identify areas that are unserved by emergency ambulance services; and (2) provide emergency ambulance services to those areas by establishing a county emergency ambulance service, contracting with a public, private, or nonprofit provider of emergency ambulance services, or by any other available means. Allows a governing body to opt out of the requirement to provide emergency ambulance services to unserved areas in certain cases. Provides that a county governing body that opts out of the provision of emergency ambulance services is immune from civil liability for personal injury or death resulting from a lack of emergency ambulance services in an area of the county.

Effective: July 1, 2026.

O'Brien, Bartels, Gore, Garcia Wilburn

(SENATE SPONSORS — CRIDER, BECKER, BOHACEK, FORD J.D.)

January 5, 2026, read first time and referred to Committee on Veterans Affairs and Public Safety.

January 12, 2026, reported — Do Pass. Referred to Committee on Ways and Means pursuant to Rule 126.3.

January 27, 2026, amended, reported — Do Pass.

January 29, 2026, read second time, ordered engrossed.

January 30, 2026, engrossed.

February 2, 2026, read third time, passed. Yeas 83, nays 0.

SENATE ACTION

February 5, 2026, read first time and referred to Committee on Local Government.

February 12, 2026, amended, reported favorably — Do Pass; reassigned to Committee on Tax and Fiscal Policy.

EH 1251—LS 6944/DI 87



February 13, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED HOUSE BILL No. 1251

A BILL FOR AN ACT to amend the Indiana Code concerning health.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 16-18-2-150, AS AMENDED BY P.L.197-2011,
2 SECTION 55, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 150. (a) "Governing body", for purposes of
4 IC 16-22-7, has the meaning set forth in IC 16-22-7-2.

5 **(b) "Governing body", for purposes of IC 16-31-5, has the**
6 **meaning set forth in IC 16-31-5-0.5.**

7 ~~(b)~~ **(c)** "Governing body", for purposes of IC 16-41-22, has the
8 meaning set forth in IC 16-41-22-3.

9 SECTION 2. IC 16-31-1-1 IS AMENDED TO READ AS
10 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) The general
11 assembly declares that ~~the provision of~~ emergency medical services,
12 **including emergency ambulance services, are essential services.**
13 **The provision of emergency medical services** is a matter of vital
14 concern affecting the public health, safety, and welfare of the people of
15 Indiana.

16 (b) It is the purpose of this article:

17 (1) to promote the establishment and maintenance of an effective

EH 1251—LS 6944/DI 87



1 system of emergency medical service, including the necessary
 2 equipment, personnel, and facilities to ensure that all emergency
 3 patients receive prompt and adequate medical care throughout the
 4 range of emergency conditions encountered;

5 (2) that the emergency medical services commission established
 6 under IC 16-31-2 shall cooperate with other agencies empowered
 7 to license persons engaged in the delivery of health care so as to
 8 coordinate the efforts of the commission and other agencies; and

9 (3) to establish standards and requirements for the furnishing of
 10 emergency medical services by persons not licensed or regulated
 11 by other appropriate agencies.

12 SECTION 3. IC 16-31-1-2 IS AMENDED TO READ AS
 13 FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 2. ~~The provision of~~
 14 Emergency medical ~~service services~~, **including emergency**
 15 **ambulance services, are essential services. The provision of**
 16 **emergency medical services** is an essential purpose of the political
 17 subdivisions of the state.

18 SECTION 4. IC 16-31-5-0.5 IS ADDED TO THE INDIANA CODE
 19 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 20 1, 2026]: Sec. 0.5. **As used in this chapter, "governing body" means**
 21 **the following:**

22 (1) **The board of county commissioners, for a county not**
 23 **subject to IC 36-2-3.5 or IC 36-3-1.**

24 (2) **The county council, for a county subject to IC 36-2-3.5.**

25 (3) **The city-county council, for a consolidated city or county**
 26 **having a consolidated city.**

27 (4) **The common council, for a city other than a consolidated**
 28 **city.**

29 (5) **The town council, for a town.**

30 (6) **The township executive with the approval of the township**
 31 **board, for a township.**

32 SECTION 5. IC 16-31-5-1, AS AMENDED BY P.L.170-2022,
 33 SECTION 30, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 34 JULY 1, 2026]: Sec. 1. **Except as provided in section 1.5 of this**
 35 **chapter**, the governing body of a city, town, township, or county by the
 36 governing body's action or in any combination may do the following:

37 (1) Establish, operate, and maintain emergency medical services.

38 (2) Levy taxes under and limited by IC 6-3.6 and expend
 39 appropriated funds of the political subdivision to pay the costs
 40 and expenses of establishing, operating, maintaining, or
 41 contracting for emergency medical services.

42 (3) Except as provided in section 2 of this chapter, authorize,



franchise, or contract for emergency medical services, **including entering into interlocal cooperation agreements under IC 36-1-7.** However:

(A) a county may not provide, authorize, or contract for emergency medical services within the limits of any city without the consent of the city; and

(B) a city or town may not provide, authorize, franchise, or contract for emergency medical services outside the limits of the city or town without the approval of the governing body of the area to be served.

(4) Apply for, receive, and accept gifts, bequests, grants-in-aid, state, federal, and local aid, and other forms of financial assistance for the support of emergency medical services.

(5) Establish and provide for the collection of reasonable fees for ambulance services the governing body provides under this chapter.

(6) Pay the fees or dues for individual or group membership in any regularly organized volunteer emergency medical services association on their own behalf or on behalf of the emergency medical services personnel serving that unit of government.

SECTION 6. IC 16-31-5-1.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 1.5. (a) Subject to section 1(3) of this chapter, and except as provided in subsection (c), a county governing body shall:**

(1) identify areas of the county, if any, that are unserved by at least one (1) public, private, or nonprofit provider of emergency ambulance services; and

(2) provide emergency ambulance services to the unserved areas by any of the means set forth in section 1 of this chapter, including:

(A) establishing a county emergency ambulance service;

(B) contracting with a public, private, or nonprofit provider of emergency ambulance services; or

(C) entering into interlocal cooperation agreements under IC 36-1-7 with one (1) or more political subdivisions.

(b) Nothing in this section requires the county to appropriate county revenue to provide emergency ambulance services, if emergency ambulance services can be provided by other means.

(c) A governing body may pass an ordinance to opt out of the requirements set forth in subsection (a) if, after making every reasonable effort to comply with the requirements set forth in subsection (a), the governing body determines that it is unable to



1 **comply with the requirements. The ordinance shall state the**
2 **specific reasons for noncompliance. The county shall send a copy**
3 **of the ordinance to the department of homeland security.**

4 **(d) If a governing body opts out of the requirements set forth in**
5 **subsection (a), the county, the governing body, and the individual**
6 **governing body members are immune from civil liability for**
7 **personal injury or death resulting from an area of the county being**
8 **unserved by emergency ambulance services.**

9 **SECTION 7. IC 34-30-2.1-209.5 IS ADDED TO THE INDIANA**
10 **CODE AS A NEW SECTION TO READ AS FOLLOWS**
11 **[EFFECTIVE JULY 1, 2026]: Sec. 209.5. IC 16-31-5-1.5 (Concerning**
12 **a county that opts out of providing emergency ambulance services).**



COMMITTEE REPORT

Mr. Speaker: Your Committee on Veterans Affairs and Public Safety, to which was referred House Bill 1251, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill do pass.

(Reference is to HB 1251 as introduced.)

BARTELS

Committee Vote: Yeas 12, Nays 0

COMMITTEE REPORT

Mr. Speaker: Your Committee on Ways and Means, to which was referred House Bill 1251, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 3, line 23, after "chapter," insert "**and except as provided in subsection (c),**".

Page 3, after line 38, begin a new paragraph and insert:

"(c) A governing body may pass an ordinance to opt out of the requirements set forth in subsection (a) if, after making every reasonable effort to comply with the requirements set forth in subsection (a), the governing body determines that it is unable to comply with the requirements. The ordinance shall state the specific reasons for noncompliance. The county shall send a copy of the ordinance to the department of homeland security."

and when so amended that said bill do pass.

(Reference is to HB 1251 as printed January 12, 2026.)

THOMPSON

Committee Vote: yeas 23, nays 0.



COMMITTEE REPORT

Mr. President: The Senate Committee on Local Government, to which was referred House Bill No. 1251, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 4, after line 3, begin a new paragraph and insert:

"(d) If a governing body opts out of the requirements set forth in subsection (a), the county, the governing body, and the individual governing body members are immune from civil liability for personal injury or death resulting from an area of the county being unserved by emergency ambulance services.

SECTION 7. IC 34-30-2.1-209.5 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: **Sec. 209.5. IC 16-31-5-1.5 (Concerning a county that opts out of providing emergency ambulance services).**".

Re-number all SECTIONS consecutively.

and when so amended that said bill do pass and be reassigned to the Senate Committee on Tax and Fiscal Policy.

(Reference is to HB 1251 as printed January 27, 2026.)

BUCK, Chairperson

Committee Vote: Yeas 10, Nays 0.

